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Case Number: 23SMCV01274 Hearing Date: July 8, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

PRIMARY HOME

IMPROVEMENT & DESIGN, INC. dba PRIMARY HOMES,

Plaintiff,

v.

CHRISTIE

CARR, et al.,

Defendants.

Case No.:

23SMCV01274

Hearing Date: July 8, 2026

[TENTATIVE]

order RE:

CROSS-DEFENDANT KOBE STRUCTURAL ENGINEERING
& DESIGN DBA KOBE ENTERPRISES' MOTION TO STRIKE PORTIONS OF
CROSS-COMPLAINANT CHRISTIE CARR'S SECOND AMENDED CROSS-COMPLAINT

BACKGROUND

This case arises from a breach of contract. Plaintiff Primary Home Improvement & Design, Inc. dba Primary Homes ("Plaintiff") entered into a written contract with Defendant Christie Carr ("Carr") for Plaintiff to build a new 4,500 square foot home

at 13222 Beach View Estates Drive, Malibu, CA 90265 (the "Property"). (Compl., ¶ 6.) Plaintiff provided Carr with an estimate of \$1,960,200. (Ibid.) Plaintiff commenced work at the Property on or about October 15, 2020. (Id. at ¶ 8.) Construction was substantially completed by January 2023. (Id. at ¶ 9.) The final inspection was not finalized due to Carr's installation of a grey water system without the City permit. (Ibid.)

On January 4, 2023, Plaintiff sent Carr an invoice requesting payment for the unpaid balance of the Contractor's fee totaling \$79,060.78 for work completed. (Id. at ¶ 10.) On January 14, 2023, Plaintiff emailed Carr requesting payment. (Id. at ¶ 11.) On January 18, 2023, Defendant caused a letter to be sent providing notice to immediately suspend work. (Id. at ¶ 12.) On January 20, 2023, Plaintiff sent a letter to Carr requesting an expert examine the Property for alleged issues. (Id. at ¶ 13.) Plaintiff did not give permission for an expert to examine the Property or communicate specific issues for withholding money other than one door leaking from rain. (Ibid.) Plaintiff gave notice that the delay and suspension of work is damaging Plaintiff and that Carr had breached the contract due to failure to pay timely undisputed sums due to the Contractor. (Id. at ¶ 14.)

On March 23, 2023, Plaintiff filed its Complaint. The complaint alleges four causes of action for (1) breach of written contract; (2) quantum meruit; (3) foreclosure on mechanics lien; and (4) prompt payment statute (California Civil Code §8800).

On May 30, 2023, Carr filed a Cross-Complaint against Plaintiff for (1) breach of contract and (2) implied covenant of good faith and fair dealing.

On November 13, 2025, Carr filed the First Amended Cross-Complaint ("FACC") adding cross-defendant Kobe Structural Engineering & Design dba Kobe Enterprises ("Kobe"). The FACC alleged causes of action against Kobe for Breach of Contract, Breach of the Implied Covenant of Good Faith and Fair Dealing, Breach of Contract Third-Party Beneficiary, and Professional Negligence, as well as a request for punitive damages. Kobe filed an Answer to the FACC.

On April 29, 2026, Carr filed the Second Amended Cross-Complaint ("SACC"). The SACC contains the same causes of action against Kobe as pled in the FAC, as well as the punitive damages prayer.

On June 17, 2026, Cross-Defendant Kobe ("Kobe") filed this Motion to Strike Portions of the Cross-Complainant Christie Carr's Second Amended Cross-Complaint ("Motion").

On June 24, 2026, Carr filed an opposition to the Motion.

On June 30, 2026, Plaintiff and Cross-Defendant Primary Home Improvement & Design, Inc. ("Primary Home") filed a Reply to Carr's opposition.

LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

DISCUSSION

Punitive Damages

Kobe moves to

strike Carr's claim for punitive damages from the SACC. Kobe argues the SACC fails to allege any specific conduct by Kobe that would merit punitive damages.

Kobe claims that the SACC does not state or allege Kobe did or failed to do anything or committed conduct constituting malice or oppression that was authorized or known and adopted or approved by an officer, director, or managing agent of Kobe.

In opposition,

Carr argues to have detailed a clear pattern of deceptive behavior by Primary Homes and its subcontractors and that the facts warrant punitive damages. Carr argues that the subcontractors terminated their contracts once Primary Homes repudiated its contract with Carr. These actions deprived Carr of her home for several more years and deceived her into paying unnecessary premiums for inferior products. Carr also requests leave to amend, should the Court grant the Motion.

Civil Code section 3294 authorizes the

recovery of punitive damages in non-contract cases where "the defendant has been guilty of oppression, fraud, or malice" (Civ. Code § 3294(a).)

"'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Id., § 3294(c)(1).) A plaintiff must establish the defendant was aware of the probable dangerous consequences of his conduct and that he willfully and deliberately failed to avoid those consequences to support an award of punitive damages based on conscious disregard of the safety of others. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867.) "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Id., § 3294(c)(3).) When the defendant is a corporation, "the oppression, fraud, or malice must be perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent of the corporation." (Wilson v. Southern California Edison Company (2015) 234 Cal.App.4th 123, 164; see Civ. Code § 3294(b).)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Punitive damages thus require more than the mere commission of a tort. (See Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pleaded in support of punitive damages. (See Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.) Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 (citations omitted).) Conclusory characterizations of defendant's conduct as willful, intentional or fraudulent is a patently insufficient statement of the necessary factual grounds for punitive damages. (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.)

“With the exception of bad faith insurance cases, a breach of the covenant of good faith and fair dealing permits a recovery solely in contract.” (Spinks v. Equity Residential Briarwood Apartments (2009) 171 Cal.App.4th 1004, 1054.) Since a party “may not recover in tort for ... breach of the implied covenant of good faith and fair dealing,” an “award of punitive damages” is not permitted on such a claim. (Ibid.) In noninsurance cases, breach of the implied covenant of good faith and fair dealing will not give rise to punitive damages. (Id. at pp. 1054-1055.) Any policy arguments for extension to other contexts are properly directed to the Legislature. (Ibid.)

As this case is not a bad faith insurance case, punitive damages are not available for breach of the covenant of good faith and fair dealing based solely in contract.

Even if punitive damages were available for breach of the covenant of good faith and fair dealing, the SACC fails to allege sufficient facts to support punitive damages. Carr seeks punitive damages against Kobe for the Second Cause of Action for Breach of Implied Covenant of Good Faith. In the Second Cause of Action, Carr uses the term “Cross-Defendants” to refer to Primary Homes, all subcontractors (including Kobe), and Roe Cross-Defendants. (SACC, ¶ 90.) The SACC alleges that Cross-Defendants acted in “bad faith in making representations of completed and compliant work, concealing from Cross-Complainant the actual facts that the constructions services were not compliant with the Contract.” (Id.

at ¶ 100.) The SACC also alleges that Carr was “misled into thinking that the Cross-Defendants, and each of them, were diligently working” and that the “Cross-Defendants, or one or more of them, were actively concealing important facts related to the construction.” (Id. at ¶ 106-107.) These facts allege fraud, deceit, or concealment of a known material fact.

However, the SACC does not allege that Kobe or one of Kobe’s officers, directors, or managing agents of the corporation knowingly ratified malice, oppression, or fraud. In fact, the SACC does not allege conduct committed by Kobe or one of its officers, directors, or managing agents anywhere throughout the Second Cause of Action. The SACC alleges that Primary Homes is “aware of the risks created by its negligence, breach of the contract, and misrepresentations, but failed or refused to rectify any of these issues while still demanding full payment.” (Id. at ¶ 121.) However, no similar statement was included as to Kobe.

Given that punitive damages are not available for breach of the covenant of good faith and fair dealing based solely in contract, the motion to strike is granted without leave to amend.

The court will not address Primary Home’s argument in Reply stating that the SACC does not sufficiently state facts to support a request for punitive or exemplary damages against Primary Home because it was improperly brought within the Reply to this Motion.

CONCLUSION

For the foregoing reasons, the Court GRANTS Cross-Defendant Kobe Structural Engineering & Design dba Kobe Enterprises’ Motion to Strike Portions of the Second Amended Cross-Complaint without leave to amend.

DATED: July 8, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court